

SUNPOWER CAPITAL, LLC vs. RAY MAHDI
Case No. FCS059222

Plaintiff's Motion to Enforce Settlement Agreement

TENTATIVE RULING

Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action typically is required to be made in the same manner as required for service of summons and complaint. (See, e.g., applications for writs of attachment [Code Civ. Proc, § 482.070, subd. (d)]; applications for writs of possession [Code Civ. Proc., § 512.030, subd. (b)].) Defendant filed no responsive pleading in this action identifying an address of record. The court further observes that the address identified as used for service by mail in the proof of service of this motion does not match the address used for substituted service of the complaint.

The court denies this motion without prejudice due to the above-stated issues. Plaintiff is advised to effect service of future motion papers on Defendant in a manner authorized for service of summons and complaint, at least sixteen court days prior to the continued hearing date.

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